

1 **SENATE FLOOR VERSION**

2 April 7, 2026

3 **AS AMENDED**

4 ENGROSSED HOUSE

5 BILL NO. 3590

By: Lepak of the House

and

Daniels of the Senate

8 **[revenue and taxation - Oklahoma Equal Opportunity**
9 **Education Scholarship Act - eligible student -**
10 **Oklahoma authority - scholarship payments - annual**
11 **revenue - reporting requirements - effective date]**

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 68 O.S. 2021, Section 2357.206, as
14 amended by Section 1, Chapter 49, O.S.L. 2022 (68 O.S. Supp. 2025,
15 Section 2357.206), is amended to read as follows:

16 Section 2357.206. A. This act shall be known and may be cited
17 as the "Oklahoma Equal Opportunity Education Scholarship Act".

18 B. 1. Except as provided in subsection G of this section,
19 after August 26, 2011, there shall be allowed a credit for any
20 taxpayer who makes a contribution to an eligible scholarship-
21 granting organization.

22 The credit shall be equal to fifty percent (50%) of the total
23 amount of contributions made during a taxable year, not to exceed
24 One Thousand Dollars (\$1,000.00) for single individuals, Two

1 Thousand Dollars (\$2,000.00) for married individuals filing jointly,
2 or One Hundred Thousand Dollars (\$100,000.00) for any taxpayer which
3 is a legal business entity including limited and general
4 partnerships, corporations, subchapter S corporations and limited
5 liability companies, plus any suspended credits pursuant to
6 subparagraph d of paragraph 2 of subsection I of this section;
7 provided, if total credits claimed pursuant to this paragraph exceed
8 the cap amount established pursuant to paragraphs 1 and 2 of
9 subsection E of this section, the credit shall be equal to the
10 taxpayer's proportionate share of the cap for the taxable year, as
11 determined pursuant to subsection I of this section.

12 2. For any taxpayer who makes a contribution to an eligible
13 scholarship-granting organization and makes a written commitment to
14 contribute the same amount for an additional year, the credit for
15 the first year and the additional year shall be equal to seventy-
16 five percent (75%) of the total amount of the contribution made
17 during a taxable year, not to exceed the amounts established in
18 paragraph 1 of this subsection for the taxable year in which the
19 credit provided in this subsection is claimed. The taxpayer shall
20 provide evidence of the written commitment to the Oklahoma Tax
21 Commission at the time of filing the refund claim.

22 3. The credits authorized pursuant to the provisions of this
23 subsection shall be allocable to the partners, shareholders,
24 members, or other equity owners of a taxpayer that is authorized to

1 be treated as a partnership for purposes of federal income tax
2 reporting for the taxable year for which the tax credits authorized
3 by this subsection are claimed on the applicable return, together
4 with required schedules, forms or reports of the partners,
5 shareholders, members, or other equity owners of the taxpayer. Tax
6 credits which are allocated to such equity owners shall only be
7 limited in amount for the income tax return of a natural person or
8 persons based upon the limitation of the total credit amount to the
9 entity from which the tax credits have been allocated and shall not
10 be limited to One Thousand Dollars (\$1,000.00) for single
11 individuals or limited to Two Thousand Dollars (\$2,000.00) for
12 married persons filing a joint return.

13 4. On or before ~~April 30, 2024~~ December 31, 2029, and once
14 every ~~two (2)~~ four (4) years thereafter, such scholarship-granting
15 organization and educational improvement grant organization shall
16 electronically submit to the Oklahoma Tax Commission, the Governor,
17 President Pro Tempore of the Senate, the Speaker of the House of
18 Representatives, and the chairs and vice chairs of the education
19 committees of the Senate and House of Representatives an audited
20 financial statement for the organization along with information
21 detailing the benefits, successes, or failures of the program, and
22 make publicly available on its website the financial statement and
23 information submitted pursuant to this paragraph.

24

1 C. 1. Except as provided in subsection G of this section,
2 after August 26, 2011, there shall be allowed a credit for any
3 taxpayer who makes a contribution to an eligible educational
4 improvement grant organization. Except as otherwise provided by
5 paragraph 2 of this subsection, the credit shall be equal to fifty
6 percent (50%) of the total amount of contributions made during a
7 taxable year, not to exceed One Thousand Dollars (\$1,000.00) for
8 single individuals, Two Thousand Dollars (\$2,000.00) for married
9 individuals filing jointly, or One Hundred Thousand Dollars
10 (\$100,000.00) for any taxpayer which is a legal business entity
11 including limited and general partnerships, corporations, subchapter
12 S corporations and limited liability companies, plus any suspended
13 credits pursuant to subparagraph d of paragraph 2 of subsection I of
14 this section; provided, if total credits claimed pursuant to this
15 paragraph exceed the cap amount established pursuant to paragraphs 3
16 and 4 of subsection E of this section, the credit shall be equal to
17 the taxpayer's proportionate share of the cap for the taxable year,
18 as determined pursuant to subsection I of this section.

19 2. For any taxpayer who makes a contribution to an eligible
20 educational improvement grant organization and makes a written
21 commitment to contribute the same amount for an additional year, the
22 credit for the first year and the additional year shall be equal to
23 seventy-five percent (75%) of the total amount of the contribution
24 made during a taxable year, not to exceed the cap amount established

1 in paragraphs 3 and 4 of subsection E of this section for the
2 taxable year in which the credit provided in this paragraph is
3 claimed; provided, if total credits claimed pursuant to this
4 paragraph exceed the cap established pursuant to paragraphs 3 and 4
5 of subsection E of this section, the credit shall be equal to the
6 taxpayer's proportionate share of the cap for the taxable year, as
7 determined pursuant to subsection I of this section. The taxpayer
8 shall provide evidence of the written commitment to the Oklahoma Tax
9 Commission at the time of filing the refund claim.

10 3. The credits authorized pursuant to the provisions of this
11 subsection shall be allocable to the partners, shareholders,
12 members, or other equity owners of a taxpayer that is authorized to
13 be treated as a partnership for purposes of federal income tax
14 reporting for the taxable year for which the tax credits authorized
15 by this subsection are claimed on the applicable return, together
16 with required schedules, forms, or reports of the partners,
17 shareholders, members, or other equity owners of the taxpayer. Tax
18 credits which are allocated to such equity owners shall only be
19 limited in amount for the income tax return of a natural person or
20 persons based upon the limitation of the total credit amount to the
21 entity from which the tax credits have been allocated and shall not
22 be limited to One Thousand Dollars (\$1,000.00) for single
23 individuals or limited to Two Thousand Dollars (\$2,000.00) for
24 married persons filing a joint return.

1 D. 1. For contributions made on or after January 1, 2022,
2 there shall be allowed a credit for any taxpayer who makes a
3 contribution to an eligible public school foundation or public
4 school district. Except as otherwise provided by paragraph 2 of
5 this subsection, the credit shall be equal to fifty percent (50%) of
6 the total amount of contributions made during a taxable year, not to
7 exceed One Thousand Dollars (\$1,000.00) for single individuals, Two
8 Thousand Dollars (\$2,000.00) for married individuals filing jointly,
9 or One Hundred Thousand Dollars (\$100,000.00) for any taxpayer which
10 is a legal business entity including limited and general
11 partnerships, corporations, subchapter S corporations and limited
12 liability companies; provided, if total credits claimed pursuant to
13 this paragraph exceed the cap amount established pursuant to
14 paragraph 4 of subsection E of this section, the credit shall be
15 equal to the taxpayer's proportionate share of the cap for the
16 taxable year, as determined pursuant to subsection I of this
17 section.

18 2. Except as otherwise provided by paragraph 1 of this
19 subsection, for any taxpayer who makes a contribution to an eligible
20 public school foundation or public school district and makes a
21 written commitment to contribute the same amount for an additional
22 year, the credit for the first year and the additional year shall be
23 equal to seventy-five percent (75%) of the total amount of the
24 contribution made during a taxable year, not to exceed the cap

1 amount established in paragraph 4 of subsection E of this section
2 for the taxable year in which the credit provided in this paragraph
3 is claimed. The taxpayer shall provide evidence of the written
4 commitment to the Oklahoma Tax Commission at the time of filing the
5 refund claim; provided, if total credits claimed pursuant to this
6 paragraph exceed the cap amount established pursuant to paragraph 4
7 of subsection E of this section, the credit shall be equal to the
8 taxpayer's proportionate share of the cap for the taxable year, as
9 determined pursuant to subsection I of this section.

10 3. The credits authorized pursuant to the provisions of this
11 subsection shall be allocable to the partners, shareholders,
12 members, or other equity owners of a taxpayer that is authorized to
13 be treated as a partnership for purposes of federal income tax
14 reporting for the taxable year for which the tax credits authorized
15 by this subsection are claimed on the applicable return, together
16 with required schedules, forms, or reports of the partners,
17 shareholders, members, or other equity owners of the taxpayer. Tax
18 credits which are allocated to such equity owners shall only be
19 limited in amount for the income tax return of a natural person or
20 persons based upon the limitation of the total credit amount to the
21 entity from which the tax credits have been allocated and shall not
22 be limited to One Thousand Dollars (\$1,000.00) for single
23 individuals or limited to Two Thousand Dollars (\$2,000.00) for
24 married persons filing a joint return.

1 4. On or before ~~April 30, 2024~~ December 31, 2029, and once
2 every four (4) years thereafter, such eligible public school
3 foundation and public school district shall submit to the Oklahoma
4 Tax Commission, the Governor, President Pro Tempore of the Senate,
5 and the Speaker of the House of Representatives an audited financial
6 statement for the organization along with information detailing the
7 benefits, successes, or failures of the programs.

8 E. Except as otherwise provided pursuant to subsection I of
9 this section:

10 1. The total credits authorized pursuant to subsection B of
11 this section for all taxpayers for tax years 2017 through 2021 shall
12 not exceed Three Million Five Hundred Thousand Dollars
13 (\$3,500,000.00) annually;

14 2. The total credits authorized pursuant to subsection B of
15 this section for all taxpayers for tax years 2022 and subsequent tax
16 years shall not exceed Twenty-five Million Dollars (\$25,000,000.00)
17 annually;

18 3. The total credits authorized pursuant to subsection C of
19 this section for all taxpayers for tax years 2017 through 2021 shall
20 not exceed One Million Five Hundred Thousand Dollars (\$1,500,000.00)
21 annually;

22 4. The total credits authorized pursuant to subsections C and D
23 of this section for all taxpayers for tax year 2022 and subsequent
24 tax years shall not exceed Twenty-five Million Dollars

1 (\$25,000,000.00) annually. In addition to the cap amount prescribed
2 by this paragraph, the credit amount shall also be limited to Two
3 Hundred Thousand Dollars (\$200,000.00) of credits per public school
4 district annually; and

5 5. The cap on total credits provided for in this subsection
6 shall be allocated by the Tax Commission as provided in subsection I
7 of this section.

8 F. For credits claimed for eligible contributions made during
9 tax year 2014 and thereafter, a credit shall not be allowed by the
10 Oklahoma Tax Commission for contributions made to a scholarship-
11 granting organization or an educational improvement grant
12 organization if that organization's percentage of funds actually
13 awarded is less than ninety percent (90%). For purposes of this
14 section, the "percentage of funds actually awarded" shall be
15 determined by dividing the total amount of funds actually awarded as
16 educational scholarships or educational improvement grants over the
17 most recent twenty-four (24) months by the total amount available to
18 award as educational scholarships or educational improvement grants
19 over the most recent twenty-four (24) months.

20 G. Any tax credits which are earned by a taxpayer pursuant to
21 this section during the time period beginning August 26, 2011,
22 through December 31, 2012, may not be claimed for any period prior
23 to the taxable year beginning January 1, 2013. No credits which
24 accrue during the time period beginning August 26, 2011, through

1 December 31, 2012, may be used to file an amended tax return for any
2 taxable year prior to the taxable year beginning January 1, 2013.

3 H. As used in this section:

4 1. "Eligible student" means a child of school age who is
5 lawfully present in the United States and who is a member of a
6 household in which the total annual verified household adjusted
7 gross income during the preceding tax year does not exceed an amount
8 equal to ~~three hundred percent (300%)~~ five hundred fifty-five
9 percent (555%) of the ~~income standard used to qualify for a free or~~
10 ~~reduced-price school lunch~~ federal poverty level, as published
11 annually by the United States Department of Health and Human
12 Services or who, during the immediately preceding school year,
13 attended or, by virtue of the location of such student's place of
14 residence, was eligible to attend a public school in this state
15 which has been identified ~~for school improvement~~ as having a letter
16 grade of "C", "D", or "F" as determined by the State Board of
17 Education pursuant to ~~the requirements of the No Child Left Behind~~
18 ~~Act of 2001, P.L. No. 107-110~~ Section 1210.545 of Title 70 of the
19 Oklahoma Statutes. Once a student has received an educational
20 scholarship, as defined in paragraph 3 of this subsection, the
21 student and any siblings who are members of the same household shall
22 remain eligible until they graduate from high school or reach
23 twenty-one (21) years of age, whichever occurs first;

1 2. "Eligible special needs student" means a child who has been
2 provided services under an Individualized Family Service Plan
3 through the SoonerStart program and during transition was evaluated
4 and determined to be eligible for school district services, a child
5 of school age who has attended public school in our state with an
6 individualized education program pursuant to the Individuals With
7 Disabilities Education Act, 20 U.S.C.A., Section 1400 et seq., or a
8 child who has been diagnosed by a clinical professional as having a
9 significant disability that will affect learning and who has been
10 approved by the board of a scholarship-granting organization;

11 3. "Educational scholarships" means:

- 12 a. scholarships to an eligible student of up to Five
13 Thousand Dollars (\$5,000.00) or eighty percent (80%)
14 of the statewide annual average per-pupil expenditure
15 as determined by the National Center for Education
16 Statistics, U.S. Department of Education, whichever is
17 greater, to cover all or part of the tuition, fees,
18 and transportation costs of a qualified school which
19 is accredited by the State Board of Education or an
20 accrediting association approved by the Board pursuant
21 to Section 3-104 of Title 70 of the Oklahoma Statutes,
22 b. scholarships to an eligible student of up to Five
23 Thousand Dollars (\$5,000.00) or eighty percent (80%)
24 of the statewide annual average per-pupil expenditure

1 as determined by the National Center for Education
2 Statistics, U.S. Department of Education, whichever is
3 greater, to cover the educational costs of a qualified
4 school which does not charge tuition, which enrolls
5 special populations of students, and which is
6 accredited by the State Board of Education or an
7 accrediting association approved by the Board pursuant
8 to Section 3-104 of Title 70 of the Oklahoma Statutes,
9 or

10 c. scholarships to an eligible special needs student of
11 up to Twenty-five Thousand Dollars (\$25,000.00) to
12 cover all or part of the tuition, fees, and
13 transportation costs of a qualified school for
14 eligible special needs students which is accredited by
15 the State Board of Education or an accrediting
16 association approved by the Board pursuant to Section
17 3-104 of Title 70 of the Oklahoma Statutes;

18 4. "Low-income eligible student" means an eligible student or
19 eligible special needs student who ~~qualifies for a free or reduced-~~
20 ~~price lunch~~ is a member of a household with a verified household
21 adjusted gross income that does not exceed one hundred eighty-five
22 percent (185%) of the federal poverty level, as published annually
23 by the United States Department of Health and Human Services;
24

1 5. "Qualified school" means an early childhood, elementary, or
2 secondary private school in this state including schools which
3 provide special educational programs for three-year-olds or
4 prekindergarten educational programs for four-year-olds, which:

- 5 a. is accredited by the State Board of Education or an
6 accrediting association approved by the Board pursuant
7 to Section 3-104 of Title 70 of the Oklahoma Statutes,
- 8 b. is in compliance with all applicable health and safety
9 laws and codes,
- 10 c. has a stated policy against discrimination in
11 admissions on the basis of race, color, national
12 origin, or disability, and
- 13 d. ensures academic accountability to parents and
14 guardians of students through regular progress
15 reports;

16 6. "Qualified school for eligible special needs students" means
17 an early childhood, elementary, or secondary private school in a
18 county in this state including schools which provide special
19 educational programs for three-year-olds or prekindergarten
20 educational programs for four-year-olds;

21 7. "Scholarship-granting organization" means an organization
22 which:
23
24

- 1 a. is a nonprofit entity exempt from taxation pursuant to
2 the provisions of the Internal Revenue Code, 26
3 U.S.C., Section 501(c)(3),
- 4 b. distributes periodic scholarship payments as checks
5 made out to an eligible student's or eligible special
6 needs student's parent or guardian and mailed to the
7 qualified school where the student is enrolled or by
8 secure electronic funds transfer, including, but not
9 limited to, automated clearinghouse transfer, to an
10 account of the qualified school designated to receive
11 scholarship payments on behalf of the eligible
12 student,
- 13 c. spends no more than ten percent (10%) of its annual
14 revenue on expenditures other than educational
15 scholarships as defined in paragraph 3 of this
16 subsection,
- 17 d. spends each year a portion of its expenditures on
18 educational scholarships for low-income eligible
19 students, as defined in paragraph 4 of this
20 subsection, in an amount equal to or greater than the
21 percentage of ~~low-income eligible~~ students in the
22 state whose household adjusted gross income does not
23 exceed one hundred eighty-five percent (185%) of the
24 federal poverty level,

- 1 e. ensures that scholarships are portable during the
2 school year and can be used at any qualified school
3 that accepts the eligible student or at any qualified
4 school for special needs students that accepts the
5 eligible special needs student,
- 6 f. registers with the Oklahoma Tax Commission as a
7 scholarship-granting organization, and
- 8 g. has policies in place to:
- 9 (1) carry out criminal background checks on all
10 employees and board members to ensure that no
11 individual is involved with the organization who
12 might reasonably pose a risk to the appropriate
13 use of contributed funds, and
- 14 (2) maintain full and accurate records with respect
15 to the receipt of contributions and expenditures
16 of those contributions and supply such records
17 and any other documentation required by the Tax
18 Commission to demonstrate financial
19 accountability;

20 8. "Annual revenue" means the total amount or value of
21 contributions received by an organization from taxpayers awarded
22 credits during the organization's fiscal year and all amounts earned
23 from interest or investments. For purposes of determining
24 compliance with the limitations on administrative expenditures, only

1 contributions for which a tax credit is allowed pursuant to this
2 section and received during the applicable fiscal year shall be
3 included in the calculation, and any interest, dividends, or other
4 investment earnings or income derived from such contributions shall
5 be excluded;

6 9. "Public school" means public schools as defined in Section
7 1-106 of Title 70 of the Oklahoma Statutes;

8 10. "Eligible public school district" means any public school;

9 11. "Early childhood education program" means a special
10 educational program for eligible special needs students who are
11 three (3) years of age or a prekindergarten educational program
12 provided to children who are at least four (4) years of age but not
13 more than five (5) years of age on or before September 1;

14 12. "Innovative educational program" means an advanced academic
15 or academic improvement program that is not part of the regular
16 coursework of a public school but that enhances the curriculum or
17 academic program of the school or provides early childhood education
18 programs to students;

19 13. "Educational improvement grant" means a grant to an
20 eligible public school to implement an innovative educational
21 program for students including the ability for multiple public
22 schools to make an application and be awarded a grant to jointly
23 provide an innovative educational program;

1 14. "Educational improvement grant organization" means an
2 organization which:

- 3 a. is a nonprofit entity exempt from taxation pursuant to
4 the provisions of the Internal Revenue Code, 26
5 U.S.C., Section 501(c)(3), and
6 b. contributes at least ninety percent (90%) of its
7 annual receipts as grants to eligible schools for
8 innovative educational programs. For purposes of this
9 subparagraph, an educational improvement grant
10 organization contributes its annual cash receipts when
11 it expends or otherwise irrevocably encumbers those
12 funds for expenditure during the then current fiscal
13 year of the organization or during the next succeeding
14 fiscal year of the organization; and

15 15. "Eligible public school foundation" means a nonprofit
16 entity formed pursuant to the laws of this state and is exempt from
17 federal income taxation pursuant to either Section 501(c)(3) or
18 Section 509(a) of the Internal Revenue Code of 1986, as amended.
19 Each public school foundation must be approved by the local board of
20 education prior to accepting qualifying donations.

21 I. Total credits authorized by this section shall be allocated
22 as follows:

23 1. By January 10 of the year immediately following each
24 calendar year, a scholarship-granting organization, an educational

1 improvement grant organization, an eligible public school
2 foundation, or public school district which accepts contributions
3 pursuant to this section shall provide electronically to the Tax
4 Commission information on each contribution accepted during such
5 taxable year. At least once each taxable year, the entity making
6 the report shall notify each contributor that Oklahoma law provides
7 for a total, statewide cap on the amount of income tax credits
8 allowed annually;

9 2. a. If the Tax Commission determines the total combined
10 credits claimed for contributions made to scholarship-
11 granting organizations during the most recently
12 completed calendar year by all taxpayers are in excess
13 of the statewide cap amount provided in paragraphs 1
14 and 2 of subsection E of this section, the Tax
15 Commission shall first allocate any amount of credits
16 not claimed for contributions made to organizations
17 authorized pursuant to subsections C and D of this
18 section, then shall determine the percentage of the
19 contribution which establishes the proportionate share
20 of the credit which may be claimed by any taxpayer so
21 that the total maximum credits authorized by this
22 section are not exceeded.

23 b. If the Tax Commission determines the total combined
24 credits claimed for contributions made to

1 organizations authorized pursuant to subsections C and
2 D of this section during the most recently completed
3 calendar year by all taxpayers are in excess of the
4 statewide cap amount provided in paragraphs 3 and 4 of
5 subsection E of this section, the Tax Commission shall
6 first allocate any amount of credits not claimed for
7 contributions made to scholarship-granting
8 organizations, then shall determine the percentage of
9 the contribution which establishes the proportionate
10 share of the credit which may be claimed by any
11 taxpayer so that the maximum credits authorized by
12 this section are not exceeded.

13 c. If the Tax Commission determines the total combined
14 credits claimed for contributions made to
15 organizations authorized pursuant to subsections C and
16 D of this section during the most recently completed
17 calendar year by all taxpayers are in excess of the
18 per public school district cap pursuant to paragraph 4
19 of subsection E of this section, the Tax Commission
20 shall first allocate any amount of credits not claimed
21 for contributions made to other organizations
22 authorized pursuant to subsections C and D of this
23 section, then shall determine the percentage of the
24 contribution which establishes the proportionate share

1 of the credit which may be claimed by any taxpayer so
2 that the maximum credits authorized by this section
3 are not exceeded.

4 d. Beginning for tax year 2016, credits earned, but not
5 allowed due to the application of statewide caps
6 provided in subsection E of this section will be
7 considered suspended and authorized to be used in the
8 next immediate tax year and applied to the next year's
9 statewide cap; and

10 3. The Tax Commission shall publish the percentage of the
11 contribution which may be claimed as a credit by contributors for
12 the most recently completed calendar year on the Tax Commission
13 website no later than February 15 of each calendar year for
14 contributions made the previous year. Each organization authorized
15 pursuant to subsections B, C, and D of this section shall notify
16 contributors of that amount annually.

17 J. No tax credits authorized by this section shall be used to
18 reduce the tax liability of the taxpayer to less than zero (0).

19 K. Any credits authorized by this section allowed but not used
20 in any tax year may be carried over, in order, to each of the three
21 (3) years following the year of qualification.

22 L. 1. In order to qualify under this section, each
23 organization authorized pursuant to subsections C and D of this
24

1 section shall submit an application with information to the Oklahoma
2 Tax Commission on a form prescribed by the Tax Commission that:

- 3 a. enables the Tax Commission to confirm that the
4 organization is a nonprofit entity exempt from
5 taxation pursuant to the provisions of the Internal
6 Revenue Code, 26 U.S.C., Section 501(c)(3) or Section
7 509(a), and
- 8 b. describes the proposed innovative educational program
9 or programs supported by the organization.

10 2. The Tax Commission shall review and approve or disapprove
11 the application, in consultation with the State Department of
12 Education.

13 3. In order to maintain eligibility under this section, an
14 organization authorized pursuant to subsections C and D of this
15 section shall annually report the following information to the Tax
16 Commission and publish on its website by September 1 of each year:

- 17 a. the name of the innovative educational program or
18 programs and the total amount of the grant or grants
19 made to those programs during the immediately
20 preceding school year,
- 21 b. a description of how each grant was utilized during
22 the immediately preceding school year and a
23 description of any demonstrated or expected innovative
24 educational improvements,

1 c. the names of the public school and school districts
2 where innovative educational programs that received
3 grants during the immediately preceding school year
4 were implemented,

5 d. where the organization collects information on a
6 county-by-county basis, and

7 e. the total number and total amount of grants made
8 during the immediately preceding school year for
9 innovative educational programs at public school by
10 each county in which the organization made grants.

11 4. The information required under paragraph 3 of this
12 subsection shall be submitted on a form provided by the Tax
13 Commission. No later than May 1 of each year, the Tax Commission
14 shall annually distribute sample forms together with the forms on
15 which the reports are required to be made to each approved
16 organization.

17 5. The Tax Commission shall not require any other information
18 be provided by an organization, except as expressly authorized in
19 this section.

20 M. 1. Beginning in 2023 for the 2022-2023 academic year, in
21 order to maintain registration, a scholarship-granting organization
22 shall annually report to the Tax Commission by September 1 of each
23 year the following information regarding the educational
24

1 scholarships funded by the organization in the previous academic
2 year:

3 a. the name and address of the scholarship-granting
4 organization,

5 b. the names of the qualifying schools that received
6 funding for educational scholarships, the total amount
7 of funds paid to each qualifying school, and the total
8 number of scholarship recipients enrolled in each
9 qualifying school,

10 c. the total number and total dollar amount of
11 contributions received during the previous academic
12 year,

13 d. the total number and total dollar amount of
14 educational scholarships awarded and funded during the
15 previous academic year,

16 e. the total number, total dollar amount, and percentage
17 of educational scholarships awarded and funded during
18 the previous academic year disaggregated into the
19 following categories:

20 (1) ~~low-income~~ eligible students, as determined by
21 verified household adjusted gross income of five
22 hundred fifty-five percent (555%) of the federal
23 poverty level, as published by the United States
24 Department of Health and Human Services,

1 (2) students who during the immediately preceding
2 school year attended or who were eligible by
3 virtue of the residence of the student to attend
4 a public school in the state which was identified
5 for school improvement as having a letter grade
6 of "C", "D", or "F" by the State Board of
7 Education pursuant to Section 1210.545 of Title
8 70 of the Oklahoma Statutes,

9 (3) eligible special needs students, and

10 (4) students who were first-time recipients of a
11 scholarship including information about the type
12 of public or private school the student was
13 enrolled in during the entire previous academic
14 year,

15 f. the percentage of annual revenue received by the
16 organization from donations which qualify for tax
17 credits pursuant to this section which was not
18 expended on scholarships,

19 g. disaggregated data reported under this subsection
20 shall be redacted if reporting would allow for
21 identification of specific children, and shall be
22 reported in accordance with the Student Data
23 Accessibility, Transparency and Accountability Act of
24 2013, ~~division~~ subparagraph b of subparagraph

1 paragraph 2 of subsection C of Section 3-168 of Title
2 70 of the Oklahoma Statutes, and the Family
3 Educational Rights and Privacy Act of 1974 (FERPA), 20
4 U.S.C., Section 1232g, and

5 h. the percentage of the total amount of education
6 scholarship expenditures spent on low-income eligible
7 students, as determined by verified household adjusted
8 gross income band as less than or equal to one hundred
9 eighty-five percent (185%) of the federal poverty
10 level.

11 2. The Tax Commission shall make available on its website:

- 12 a. the information submitted by the scholarship-granting
13 organization pursuant to paragraph 1 of this
14 subsection,
15 b. a list of participating schools, and
16 c. all other application information submitted to the Tax
17 Commission by a scholarship-granting organization,
18 except that information which would violate the
19 privacy of an individual.

20 3. A scholarship-granting organization shall annually submit
21 verification to the Tax Commission that the organization still meets
22 the criteria set forth in paragraph 7 of subsection H of this
23 section.
24

1 N. Contributions made pursuant to subsections B, C, and D of
2 this section shall not be used by the Legislature to reduce the
3 amount appropriated for the financial support of public schools.

4 O. In consultation with the State Department of Education, the
5 Tax Commission shall promulgate rules necessary to implement the
6 Oklahoma Equal Opportunity Education Scholarship Act. The rules
7 shall include procedures for the registration of a scholarship-
8 granting organization, an educational improvement grant
9 organization, a public school foundation, or public school district
10 for purposes of determining if the organization meets the
11 requirements of the Oklahoma Equal Opportunity Education Scholarship
12 Act or for the revocation of the registration of an organization, if
13 applicable, and for notice as required in subsection I of this
14 section.

15 SECTION 2. This act shall become effective January 1, 2027.

16 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
17 April 7, 2026 - DO PASS AS AMENDED
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